



CHAPTER 7.

An Act to amend the Law relating to the registration of irregular marriages in Scotland, and to amend during the continuance of the present War the Marriage Notice (Scotland) Act, 1878, so far as applying to persons serving in the Naval and Military forces of the Crown. A.D. 1916.
[19th April 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The parties to a joint application for warrant to register an irregular marriage under the Marriage (Scotland) Act, 1856 (in this Act called a "joint application"), shall, before presenting the same to the sheriff, procure from the registrar of the parish or district in which such irregular marriage was contracted a Schedule of Particulars in the form as nearly as may be of the Schedule to this Act, and the said registrar shall be bound upon the production of the joint application to furnish the said Schedule of Particulars and to fill up the same according to the information supplied by such parties to the best of their knowledge and belief.

Application for warrant to register irregular marriage to be accompanied by Schedule of Particulars.
19 & 20 Vict. c. 96.

(2) It shall not be lawful for the sheriff to grant warrant to register any irregular marriage unless there is produced with the joint application the said Schedule of Particulars filled up as aforesaid and signed by the parties to the joint application.

(3) The sheriff clerk shall, within three days from the granting of any such warrant, transmit the joint application and warrant with the relative Schedule of Particulars to the registrar of the parish or district in which the irregular marriage was contracted, and such registrar shall forthwith enter such marriage in the Register of Marriages kept by him as provided in section two of the Marriage (Scotland) Act, 1856.

2. Every person who shall knowingly and wilfully furnish or supply or cause to be furnished or supplied any false statement or information to any registrar for the purpose of having

Penalty for making false entries or giving false information.

A.D. 1916. — the same entered in the Schedule of Particulars referred to in the preceding section, or who shall sign the said Schedule knowing any of the statements therein contained to be false, shall be guilty of an offence under this Act and shall be liable on conviction on indictment to imprisonment for a period not exceeding two years or on summary conviction to imprisonment for a period not exceeding three months.

Convictions
for irregular
marriage to
cease.

3. After the commencement of this Act it shall not be lawful to convict any person of having contracted a clandestine or irregular marriage.

Amendment
during war of
Marriage
Notice (Scot-
land) Act,
1878, as apply-
ing to persons
serving in the
naval and
military forces
of the Crown.
41 & 42 Vict.
c. 43.

4. Where, during the continuance of the present war, one of the parties to an intended marriage in Scotland is serving in any of the naval or military forces of the Crown, it shall be competent for such parties to give notice of such intended marriage to the registrar of the parish or district in Scotland in which the female party shall have resided for a period of not less than fifteen clear days immediately previous to the giving of such notice in the form as nearly as may be of Schedule A. annexed to the Marriage Notice (Scotland) Act, 1878, in like manner as if both parties had resided for the said period in such parish or district, and the provisions of the said Act shall apply to such notice as if it were a notice given in terms of section seven thereof, and as if in sections eight and nine thereof the words "one day" and "one clear day" were substituted for the words "seven consecutive days" and "seven clear days" respectively therein occurring.

Citation and
extent.

5. This Act may be cited as the Marriage (Scotland) Act, 1916, and shall apply to Scotland only.

SCHEDULE.

A.D. 1916.

Section 1 (1).

IRREGULAR MARRIAGE—SCOTLAND.

PARTICULARS REQUIRED FOR THE REGISTRATION OF AN
IRREGULAR MARRIAGE.

QUESTION.	ANSWER.	
(1) When was the marriage contracted ?	On the _____ day of _____ 191_____.	
Where was the marriage contracted ? (In the case of towns state street and No.)	At _____ _____	
	Husband.	Wife.
(2) What are the full Christian names and surnames of the parties to the marriage ?	_____	_____
State rank, profession, trade, or occupation.	_____	_____
State whether bachelor or widower, or spinster or widow, as the case may be.	_____	_____
Are the parties to the marriage related in any way to each other ? If so state relationship.	_____	_____
(3) What is the age (last birthday) of each party ?	_____	_____
(4) What is the usual residence ?	_____	_____
(5) State the name and surname, and rank, profes- sion, trade, or occupation of father.	_____	_____
Is the father alive ?	_____	_____
State the name and maiden surname of mother.	_____	_____
Is the mother alive ?	_____	_____
(6) What are the full Christian names and surnames, designations, and addresses (usual residence) of the witnesses ?	_____	_____

The above is a true statement.

(Signature of husband)

(Signature of wife) _____

Signed in my presence.

Registrar _____

District _____

(Date) _____ 191____.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.